

IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT  
IN AND FOR MANATEE COUNTY, FLORIDA

COLONIAL MANOR MHC HOLDINGS, LLC  
d/b/a COLONIAL MOBILE MANOR,  
Plaintiff,

vs.  
KALMAN HARTIG and ANY UNKNOWN  
TENANT(s)  
Defendants.

Case No. 2024-CC-002691

**PLAINTIFF'S RESPONSE TO DEFENDANT'S EMERGENCY MOTION TO  
CONTINUE AND §723.063(3) REQUEST FOR DISBURSEMENT OF FUNDS IN THE  
REGISTRY OF THE COURT**

COMES NOW that Plaintiff, COLONIAL MANOR MHC HOLDINGS, LLC d/b/a COLONIAL MOBILE MANOR, herein after referred to as "COLONIAL MOBILE MANOR", by and through the undersigned counsel, in the above-styled cause, hereby gives notice of its response to the Motion to Continue filed on March 30, 2025 by Pro-Se Defendant, KALMAN HARTIG, and set for an emergency hearing on April 4, 2025 at 10:45 a.m. in front of Honorable Heather Doyle via Zoom, and in support thereof states:

1. Plaintiff filed its complaint against the Defendant on August 7, 2024;
2. Defendant KALMIN HARTIG, by and through counsel, answered the complaint on or about August 22, 2024;
3. On October 21, 2024, the Plaintiff filed a motion for order to require the Defendant to pay accrued and accruing rent into the registry of the Court pursuant to Fla. Stat. §723.063 and its reply to the affirmative defenses of the Defendant, KALMIN HARTIG;
4. A hearing was conducted on the Motion to Require the Defendant to Pay Rent into the Registry of the Court on February 2, 2025, which order was rendered by the Honorable Renee Inman on February 3, 2025;

5. On February 4, 2025, this Court entered a non jury trial order for April 9, 2025 commencing at 1:30 p.m..
6. A hearing was held on March 11, 2025 on Defendant's Motion to Continue Trial, for Jury Trial, for Summary Judgment and for Production from Plaintiff, and an Order on Pending Motions was entered on the 14<sup>th</sup> of March, 2025 in the above cause denying the Defendant's Motion to Continue and Motion for Summary Judgment, and partially granting Defendant's Motion for Production of Records as to Count 5 (A-C), however, denying Count 6, which referenced a Motion for an Order for a Cease and Desist and a request for all courtesy notices posted or mailed on or about March 3, 2025, regarding lawn/landscaping issues in COLONIAL MOBILE MANOR.
7. The Order stated that Plaintiff was to supply the above-referenced records to Defendant on or before March 24, 2025.
8. The Plaintiff, through the undersigned, was unable to fulfill its discovery obligations as set by the order due to the complexity and magnitude of the Defendant's discovery requests, but completed its discovery obligation to the Defendant within 48 hours of the original deadline, providing the documents via Dropbox and regular mail on March 26, 2025. This is evidenced by the Notice of Serving Plaintiff's Response to Defendant's Discovery Requests and the Email Sent to Defendant with the link to the Drop Box, attached as **Composite Exhibit A**. Contrary to Defendant's Motion to Continue, which states Defendant did not receive the documents until March 28, 2025.
9. Additionally, 10 days before the scheduled April 9, 2025 Trial, Plaintiff and Defendant were to exchange Exhibits and Witness Lists, per the Order on Pending

Motions entered on March 14, 2025.

10. On March 28, 2025, 8 days before the trial, the undersigned counsel for the Plaintiff hand delivered the Exhibit and Witness List with all Exhibits attached, including color pictures, to the Defendant at the Colonial Manor Club House with the Park Manager present. Plaintiff's Witness and Exhibit for Trial is also attached as **Exhibit B**.
11. Defendant, KALMAN HARTIG, filed a Motion for Continuance on March 30, 2025 stating that he did not receive the discovery until March 28, 2025 at 5:00 p.m., when Attorney Price, as a courtesy, delivered an additional hard copy of the Response to Request for Production during the exchange of witnesses and exhibits, in person at the clubhouse. Those statements are false, as the Defendant received the discovery 48 hours prior.
12. During the exchange, Defendant, KALMAN HARTIG, produced a flash drive with over 628 files including notices and pictures. Included on the flash drive was a Witness List attached as **Exhibit C**.
13. Defendant also claims in his Motion to Continue that there are documents missing in the Response to Request for Production. However, the only documents that were left out of the response that are in the possession of the Plaintiff are the Notice of Termination and the Complaint for Lot #182, which have now been provided in the Notice of Serving Plaintiff's Supplemental Response to Defendant's Discovery Requests filed on April 3, 2025, attached as **Exhibit D**.
14. Defendant claims that due to the volume of the documents, he will need more time to prepare for trial.
15. Defendant also admits in his Motion to Continue that he is in possession of over

628 photographs, as referenced above, that he exchanged with Plaintiff's counsel on March 28, 2025.

16. The Plaintiff agrees to the continuance in the above-styled cause to allow the Defendant time to prepare for trial, however, requests that the Court limit the continuance to no more than 30 days from the set date of April 9, 2025 and conditions its agreement to the continuance on the release of the accumulated rent monies in the Registry of the Court to the Plaintiff, COLONIAL MOBILE MANOR.
17. The Plaintiff, COLONIAL MOBILE MANOR, has been required to shoulder the burden of the Defendant's non-payment of rent for the pendency of this summary proceeding. The Plaintiff relies upon prompt payment of rents from every tenant to offset administrative expenses.

#### Argument

The rent deposited in the Registry of the Court serves much like a bond subject to claims as limited by the purpose of the rent paid. *First Hanover vs. Vasquez*, 848 So. 2d 1188 (Fla. 3d DCA 2003); *Blair's Jungle Den, Inc. v. Williams*, 20 Fla. L. Weekly Supp. 279a (Volusia Cty., 2012); *Robert Voight d/b/a Emerald Run Apts. V. McClain* (Polk County) 11 CC 2611 (2011). Fla. Stat. §723.063(3) provides, "When the mobile home owner has deposited funds into the registry of the court in accordance with the provisions of this section and the park owner is in actual danger of loss of the premises or other personal hardship resulting from the loss of rental income from the premises, the park owner may apply to the court for disbursement of all or part of the funds or for prompt final hearing, whereupon the court shall advance the cause on the calendar. The court, after preliminary hearing, may award all or any portion of the funds on deposit to the park owner or may proceed immediately to a final resolution of the cause." Defendant's

deposits of rent into the registry allowed him the use and possession of the property, since this case was filed in August of 2024, and gained the full benefit thereof. There is no claim by the Defendant to the rent in the registry of the Court. As the Plaintiff is incurring increased personal hardship by shouldering the loss of rent not received by Lot #100, and even if this Court ultimately decides in the favor of the Defendant the Plaintiff would be entitled to those funds, there is no plead or known reason that the Court should not order the disbursement of those funds. The Court absolutely has jurisdiction to determine where the rents deposited into the registry are released, as these deposits were intended to secure the landlord's rent due pending the litigation. The provisions of Section 723.063(2) act as a bond that Defendant must post in order to enjoy the use and possession of the premises during the pendency of the litigation.

For the reasons set forth above, the Plaintiff is entitled to the funds deposited by the Defendant into the registry of the court. The funds deposited into the registry acted like a bond to secure the Defendant's rent accruing during the pendency of the litigation. Without the Defendant having deposited the ongoing rent into the registry of the court, the Plaintiff would have been entitled to immediate possession of the subject properties. Plaintiff has a valid claim of right against those funds for the rent paid during the pendency of the litigation, which has now been pending since August of 2024.

**WHEREFORE**, Plaintiff, COLONIAL MOBILE MANOR, asks this Honorable Court to grant the Continuance in the above-styled cause and release the monies in the Registry of the Court to the Plaintiff.

#### **CERTIFICATE OF SERVICE**

**I HEREBY CERTIFY** that a true copy of the foregoing Plaintiff's Response to Defendant's Emergency Motion to Continue has been furnished via U.S. Mail upon the Defendants, KALMAN HARTIG and ANY UNKNOWN PARTY(s) IN POSSESSION, at their last known address of 900 - 9<sup>th</sup> Avenue East, Lot #100, Palmetto, Florida, 34221 and to Kalman Hartig at [sonigenesis@outlook.com](mailto:sonigenesis@outlook.com) on this 3<sup>rd</sup> day of April, 2025.



William C. Price, IV, Esquire o/b/o  
Florida Bar No. 1003106  
William C. Price, III, Esquire  
Florida Bar No. 0333824  
WILLIAM C. PRICE, III, P.A.  
522 Twelfth Street West  
Bradenton, Florida 34205  
Telephone: (941) 747-8001  
Facsimile: (941) 747-3730  
Primary E-Mail: [pleadings@wcpricelaw.com](mailto:pleadings@wcpricelaw.com)  
Attorney for Plaintiff

IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT  
IN AND FOR MANATEE COUNTY, FLORIDA

COLONIAL MANOR MHC HOLDINGS, LLC  
d/b/a COLONIAL MOBILE MANOR,  
Plaintiff,

vs.  
KALMAN HARTIG and ANY UNKNOWN  
TENANT(s)  
Defendants.

Case No. 2024-CC-002691

**NOTICE OF SERVING PLAINTIFF'S RESPONSE TO  
DEFENDANT'S DISCOVERY REQUESTS**

COMES NOW that Plaintiff, COLONIAL MANOR MHC HOLDINGS, LLC d/b/a COLONIAL MOBILE MANOR, by and through the undersigned counsel, in the above-styled cause, hereby gives notice that it has served its response to the following Discovery Requests upon Pro-Se Defendant, KALMAN HARTIG, via First Class U.S. Mail and electronically via Drop Box on this 26<sup>th</sup> Day of March, 2025, in accordance with the Order on Pending Motions entered by Honorable Heather Doyle on March 14, 2025, and in support states:

- A. Any and all complete Notices, Postings, as well as all mailings, especially NOTICES OF TERMINATION OF LEASES pertaining to Lot #93 and Lot #98 from the present and going back to the year 2021 to the month of January.

**The Response of the Plaintiff is that these documents will be produced to the Defendant.**

- B. Defendant also requests Notices, Postings, as well as any mailings pertaining to Lot #218 and Lot #66 from present and going back to the year 2023 to the month of January. He also requests to review any NOTICES OF TERMINATION OF LEASE.

**The Response of the Plaintiff is that these documents will be produced to the Defendant.**

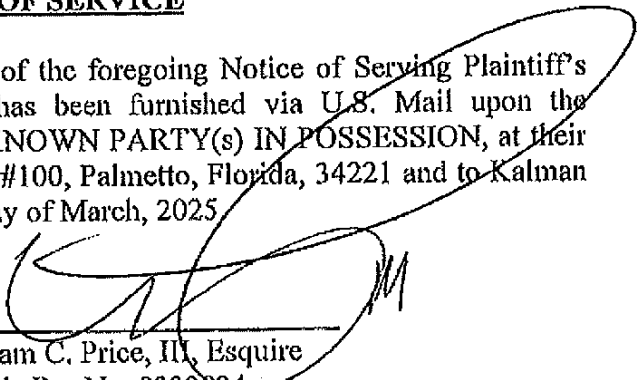
- C. Defendant also requests all Notices, Postings, as well as any mailings pertaining to Lot #182. He also requests any NOTICES OF TERMINATION OF LEASE as well as the COMPLAINT filed in this case.



The Response of the Plaintiff is that these documents will be produced to the Defendant.

**CERTIFICATE OF SERVICE**

I HEREBY CERTIFY that a true copy of the foregoing Notice of Serving Plaintiff's Response to Defendant's Discovery Requests has been furnished via U.S. Mail upon the Defendants, KALMAN HARTIG and ANY UNKNOWN PARTY(s) IN POSSESSION, at their last known address of 900 - 9<sup>th</sup> Avenue East, Lot #100, Palmetto, Florida, 34221 and to Kalman Hartig at [sonigenesis@outlook.com](mailto:sonigenesis@outlook.com) on this 26<sup>th</sup> day of March, 2025



\_\_\_\_\_  
William C. Price, III, Esquire  
Florida Bar No. 0333824  
WILLIAM C. PRICE, III, P.A.  
522 Twelfth Street West  
Bradenton, Florida 34205  
Telephone: (941) 747-8001  
Facsimile: (941) 747-3730  
Primary E-Mail: [pleadings@wcpricelaw.com](mailto:pleadings@wcpricelaw.com)  
Attorney for Plaintiff



## Monica Mehanny

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**From:** Monica Mehanny <monicam@wcpricelaw.com>  
**Sent:** Wednesday, March 26, 2025 4:43 PM  
**To:** 'Kal H'  
**Cc:** 'William Price'; pleadings@wcpricelaw.com  
**Subject:** RE: CASE # 2024 CC 2691 Response to Request for Discovery  
**Attachments:** NOTICE OF SERVING RESPONSE TO DISCOVERY.pdf

Dear Mr. Hartig,

As noted in the **attached Notice of Serving Plaintiff's Response to Defendant's Discovery Requests**, please find the link below to the documents referenced in Plaintiff's Response from Attorney Price regarding the above-referenced case. A copy of these documents have also been mailed by U.S. First Class mail to 900 9<sup>th</sup> Avenue East; Lot #100, Palmetto, FL 34221 to Kalman Hartig and Any Unknown Party(s) in Possession.

<https://www.dropbox.com/scl/fo/txyhtxz8bpbw8cu2506fd/AKIMopxPQu3C1U2u9LsQTI0?rlkey=sahh2mfodzoxn36zle9rwkhzu&st=xy5vp16s&dl=0>

Thanks,

Sincerely yours,  
**Monica Mehanny, CP**  
**Paralegal**  
WILLIAM C. PRICE, III, P.A.  
Attorneys and Counselors of Law  
522 Twelfth Street West  
Bradenton, FL 34205  
941-747-8001  
fax 941-747-3730  
[monicam@wcpricelaw.com](mailto:monicam@wcpricelaw.com)  
[wcp4@wcpricelaw.com](mailto:wcp4@wcpricelaw.com)  
[wcp3@wcpricelaw.com](mailto:wcp3@wcpricelaw.com)

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Notice: This electronic mail transmission may constitute an attorney-client communication that is privileged by law. It is not intended for transmission to, or receipt by, any unauthorized persons. If you have received this electronic transmission in error, please delete it from your system without copying it, and notify the sender by reply e-mail so that our address records may be corrected. If you have an urgent communication or if you have not received a timely response to your e-mail, please telephone me immediately. DO NOT ASSUME THAT YOUR E-MAIL HAS BEEN RECEIVED OR READ.

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IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT  
IN AND FOR MANATEE COUNTY, FLORIDA

COLONIAL MANOR MHC HOLDINGS, LLC  
d/b/a COLONIAL MOBILE MANOR,  
Plaintiff,

vs.

Case No. 2024-CC-002691

KALMAN HARTIG and ANY UNKNOWN  
TENANT(S)  
Defendants.

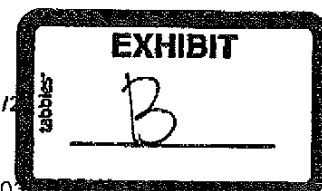
\_\_\_\_\_ /

PLAINTIFF'S WITNESS AND EXHIBIT LIST FOR TRIAL

The Plaintiff, COLONIAL MANOR MHC HOLDINGS, LLC, by and through the undersigned counsel, hereby identifies in anticipation of trial the following witnesses and gives notification that they may use the following as Exhibits in the above styled cause:

**Witnesses:**

1. Cheryl Peake  
Park Manager for Colonial Mobile Manor  
900 9<sup>th</sup> Avenue East  
Palmetto, FL 34221
2. Brian Nays  
Maintenance Manager for Colonial Mobile Manor  
900 9<sup>th</sup> Avenue East  
Palmetto, FL 34221
3. Kalman Hartig  
900 9<sup>th</sup> Avenue East; Lot #100  
Palmetto, FL 34221
4. Rolf Hanson  
Regional Manager for Kingsley Management  
4956 N. 300 W; Suite 200  
Provo, Utah 84604



5. Sylvia Esparza  
900 9<sup>th</sup> Avenue East; Lot #112  
Palmetto, FL 34221
6. Brenda Whitley  
900 9<sup>th</sup> Avenue East; Lot #101  
Palmetto, FL 34221
7. Mark Newman  
900 9<sup>th</sup> Avenue East; Lot #125  
Palmetto, FL 34221

**Exhibits:**

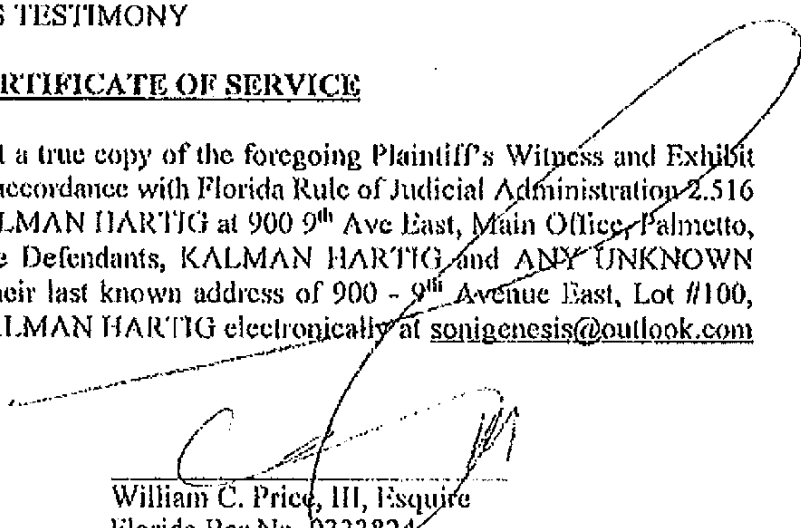
1. Colonial Manor Prospectus Dated January 1, 2011
2. Colonial Manor Rules and Regulations January 1, 2011
3. Colonial Manor Rules and Regulations January 1, 2016
4. Agreement to follow rules signed by Kalman Hartig on October, 24, 2020
5. Copy of Driver License of Kalman Hartig
6. Lease Agreement dated January 1, 2024 signed by Defendant, Kalman Hartig
7. Copy of Title for Double Wide Mobile Home located at 900 9<sup>th</sup> Avenue East; Lot #100, Palmetto, FL 34221
8. Courtesy Lot/Home Observation Notice Dated July 10, 2023
9. 2<sup>nd</sup> Courtesy Lot/Home Observation Notice Dated August 25, 2023
10. 3<sup>rd</sup> Courtesy Lot/Home Observation Notice Dated October 10, 2023
11. 4<sup>th</sup> Courtesy Lot/Home Observation Notice Dated October 24, 2023
12. 5<sup>th</sup> Courtesy Lot/Home Observation Notice Dated November 7, 2024
13. 6<sup>th</sup> Courtesy Lot/Home Observation Notice Dated November 24, 2024
14. 7<sup>th</sup> Courtesy Lot/Home Observation Notice Dated December 13, 2023
15. 7-Day Notice of Violation of Park Rules Dated January 17, 2024
16. Notice of Termination of Lease Dated March 1, 2024

17. 7-Day Notice of Violation of Park Rules Dated June 10, 2024
18. Notice of Termination of Lease Dated June 28, 2024
19. Pictures of Mobile Home located at 900 9<sup>th</sup> Ave East; Lot #100, Palmetto, FL 3422

ALL DOCUMENTS LISTED BY DEFENDANT AND DOCUMENTS TO REBUT  
DEFENDANT'S WITNESS TESTIMONY

**CERTIFICATE OF SERVICE**

I HEREBY CERTIFY that a true copy of the foregoing Plaintiff's Witness and Exhibit List for Trial has been furnished in accordance with Florida Rule of Judicial Administration 2.516 via hand delivery to Defendant KALMAN HARTIG at 900 9<sup>th</sup> Ave East, Main Office, Palmetto, FL 34221, via U.S. Mail upon the Defendants, KALMAN HARTIG and ANY UNKNOWN PARTY(s) IN POSSESSION, at their last known address of 900 - 9<sup>th</sup> Avenue East, Lot #100, Palmetto, Florida, 34221 and to KALMAN HARTIG electronically at [sonigenesis@outlook.com](mailto:sonigenesis@outlook.com) on this 28<sup>th</sup> day of March, 2025.



William C. Price, III, Esquire  
Florida Bar No. 0333824  
WILLIAM C. PRICE, III, P.A.  
522 Twelfth Street West  
Bradenton, Florida 34205  
Telephone: (941) 747-8001  
Facsimile: (941) 747-3730  
[Pleadings@wcpicelaw.com](mailto:Pleadings@wcpicelaw.com)  
Attorney for the Plaintiff

**DEFENDANT'S POSSIBLE WITNESS LIST AS OF 3/28/2025**

CHERYL PEAKE

ROLF HANSEN

BARBARA WILLIAMS

CHRISTOPHER BAILEY

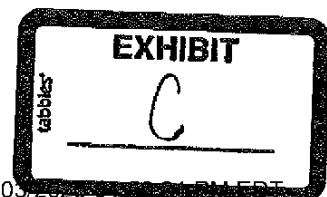
ROBERT WRIGHT

DAVE (UNKOWN LAST NAME, WILL ADVISE ASAP)

MARK NEWNAM

DR. GEORGE YESKE

DR. CHARLES CALVERT





IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT  
IN AND FOR MANATEE COUNTY, FLORIDA

COLONIAL MANOR MHC HOLDINGS, LLC  
d/b/a COLONIAL MOBILE MANOR,  
Plaintiff,

vs.  
KALMAN HARTIG and ANY UNKNOWN  
TENANT(s)  
Defendants.

Case No. 2024-CC-002691

**NOTICE OF SERVING PLAINTIFF'S SUPPLEMENTAL RESPONSE TO  
DEFENDANT'S DISCOVERY REQUESTS**

COMES NOW that Plaintiff, COLONIAL MANOR MHC HOLDINGS, LLC d/b/a COLONIAL MOBILE MANOR, by and through the undersigned counsel, in the above-styled cause, hereby gives notice that it has served its response to the following Discovery Requests upon Pro-Se Defendant, KALMAN HARTIG, via First Class U.S. Mail and electronically via Drop Box on this 2<sup>nd</sup> Day of April, 2025, in accordance with the Order on Pending Motions entered by Honorable Heather Doyle on March 14, 2025, and in support states:

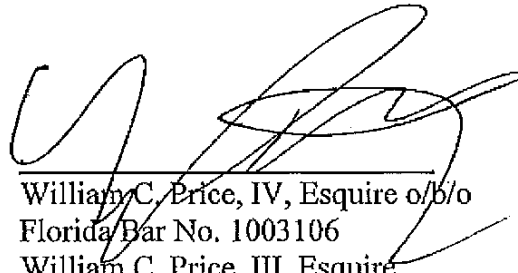
- A. Defendant also requests all Notices, Postings, as well as any mailings pertaining to Lot #182. He also requests any NOTICES OF TERMINATION OF LEASE as well as the COMPLAINT filed in this case.

**All Notices, Postings and Mailings were produced in the initial response to production. However, this supplement contains the Notice of Termination of Lease and the Complaint filed regarding Lot #182.**

**CERTIFICATE OF SERVICE**

I HEREBY CERTIFY that a true copy of the foregoing Notice of Serving Plaintiff's Supplemental Response to Defendant's Discovery Requests has been furnished via U.S. Mail upon the Defendants, KALMAN HARTIG and ANY UNKNOWN PARTY(s) IN POSSESSION, at their last known address of 900 - 9<sup>th</sup> Avenue East, Lot #100, Palmetto, Florida, 34221 and to Kalman Hartig at [sonigenesis@outlook.com](mailto:sonigenesis@outlook.com) on this 3<sup>rd</sup> day of April, 2025.





William C. Price, IV, Esquire o/b/o

Florida Bar No. 1003106

William C. Price, III, Esquire

Florida Bar No. 0333824

WILLIAM C. PRICE, III, P.A.

522 Twelfth Street West

Bradenton, Florida 34205

Telephone: (941) 747-8001

Facsimile: (941) 747-3730

Primary E-Mail: [pleadings@wcpricelaw.com](mailto:pleadings@wcpricelaw.com)

Attorney for Plaintiff



# William C. Price, III, P.A.

Attorneys and Counselors at Law

Civil & Criminal Litigation

Personal Injury

Family Law

Mobile Home/Landlord-Tenant Law

William C. Price, III, Esq.

[wcp3@wcpriatelaw.com](mailto:wcp3@wcpriatelaw.com)

William C. Price, IV, Esq.

[wcp4@wcpriatelaw.com](mailto:wcp4@wcpriatelaw.com)

DATE: December 14, 2022

TO: JOSE LUIS VASQUEZ, MARY ROSELLA HUFFMAN VASQUEZ AND ANY UNKNOWN TENANTS

ADDRESS: 900 9<sup>th</sup> Avenue East, Palmetto, FL 34221  
Lot 182, Colonial Mobile Manor

CMRR: #7019-1640-0001-6609-6752 AND BY POSTING

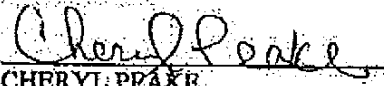
RE: Notice of Violation of Colonial Manor Rules and Regulations

## CERTIFIED MAIL - RETURN RECEIPT REQUESTED

### NOTICE OF TERMINATION OF LEASE

YOU ARE NOTIFIED THAT, PURSUANT TO FLORIDA STATUTE §723.061 YOUR RIGHT TO RESIDE IN THE PREMISES IDENTIFIED AS 900 9<sup>th</sup> AVENUE EAST, LOT #182, MANATEE COUNTY, PALMETTO, FLORIDA 34221 IS TERMINATED EFFECTIVE JANUARY 16, 2023. THIS NOTICE IS A RESULT OF CONTINUED FAILURE TO COMPLY WITH RULES 7, 15 & 22 OF THE RULES AND REGULATIONS OF COLONIAL MANOR BY NOT REMOVING THE FENCE OR OUTSIDE STORAGE. IF YOU REMAIN IN THE PREMISES BEYOND THIS DATE, YOU WILL BE CONSIDERED TENANTS AT SUFFERANCE AND AN ACTION FOR POSSESSION OF THE PREMISES WILL BE PURSUED.

COLONIAL MANOR MHC HOLDINGS, LLC  
900 9<sup>th</sup> AVENUE EAST  
PALMETTO, FLORIDA 34221  
LANDLORD

  
CHERYL PEAKE

I HEREBY CERTIFY that a copy of the foregoing was sent by CERTIFIED MAIL and POSTED upon the named tenant posted at the above referenced address, this 14 day of December, 2022.

By:   
Cheryl Peake, Community Manager  
COLONIAL MANOR MHC HOLDINGS, LLC

cc: Colonial Manor MHC Holdings, LLC.

Serving the Citizens of Manatee and Sarasota Counties Since 1981  
522 Twelfth Street West, Bradenton, Florida 34205  
Telephone (941) 747-8001 • Fax (941) 747-3730

IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT  
IN AND FOR MANATEE COUNTY, FLORIDA  
COUNTY CIVIL

COLONIAL MANOR MHC HOLDINGS, LLC,  
Plaintiff,

vs.

Case No.: 2023-CC-

JOSE LUIS VASQUEZ, MARY ROSELLA  
HUFFMAN VASQUEZ and ANY UNKNOWN  
PARTY IN POSSESSION,  
Defendants.

COMPLAINT SEEKING POSSESSION OF RESIDENTIAL PREMISES, DAMAGES  
AND LIEN FORECLOSURE

Plaintiff, COLONIAL MANOR MHC HOLDINGS, LLC, sues the Defendant(s), JOSE  
LUIS VASQUEZ, MARY ROSELLA HUFFMAN VASQUEZ, and any Unknown Party in  
Possession, in possession of certain premises more fully described below, and alleges:

COUNT I  
ACTION FOR POSSESSION

1. This is an action for removal of mobile home park lot tenants and possession of real property in Manatee County, Florida, as authorized by Section 723.061(1)(C)2 of Florida Statutes.
2. Plaintiff is a Foreign Limited Liability Company owning and operating a mobile home park located in Manatee County, Florida.
3. Plaintiff owns the real property located at 900 9<sup>th</sup> Avenue East, Lot #182, Palmetto, Manatee County, Florida 34221.
4. Pursuant to Florida Statutes §723.031 the residential rental agreement between the Defendants, JOSE LUIS VASQUEZ, and MARY ROSSELLA HUFFMAN VASQUEZ, natural persons, and the Plaintiff is an annual one.
5. Defendant JOSE LUIS VASQUEZ, a natural person, entered into a rental

LAW OFFICE OF WILLIAM C. PRICE, III, P.A.

agreement to reside at 900 9th Avenue East, Lot #182, Palmetto, FL 34221 owned by COLONIAL MANOR MHC HOLDINGS, LLC, and he is the co-owner of the mobile home on said premises.

6. Defendant, MARY ROSELLA HUFFMAN VASQUEZ, entered into a rental agreement to reside at 900 9th Avenue East, Lot #182, Palmetto, FL 34221 owned by COLONIAL MANOR MHC HOLDINGS, LLC.

7. In accepting the rental agreement, Defendants JOSE LUIS VASQUEZ and MARY ROSELLA HUFFMAN VASQUEZ accepted and agreed to be bound by the Prospectus and Rules and Regulations of COLONIAL MANOR MHC HOLDINGS, LLC.

8. Defendant(s), Any Unknown Party in Possession, may reside on the real property at 900 9th Avenue East, Lot #182, Palmetto, Manatee County, FL 34221, Manatee County, but if so, does without the consent of the Plaintiff.

9. Defendants, JOSE LUIS VASQUEZ and MARY ROSELLA HUFFMAN VASQUEZ, have violated the Rules and Regulations of COLONIAL MANOR MHC HOLDINGS, LLC, specifically, Rule 7, pertaining to the use of the covered driveway and the exterior of Lot 182 for storage of multiple items, including, without limitation, lawn mowers, tools, boxes and traffic cones. A copy of the Rules and Regulations of the Plaintiff are attached to this Complaint as Plaintiff's Exhibit A.

10. Defendants, JOSE LUIS VASQUEZ and MARY ROSELLA HUFFMAN VASQUEZ, have also violated the Rules and Regulations of COLONIAL MANOR MHC HOLDINGS, LLC, specifically, Rules 15 and 22 regarding additions not approved by park management and regarding unapproved fences and/or gates around the lot or home.

11. On November 4, 2022, the Defendants JOSE LUIS VASQUEZ and MARY ROSELLA HUFFMAN VASQUEZ, were notified by certified mail, return receipt requested, and by posting, that they violated Rules 7, 15 and 22 (Rules on Lot and Home Maintenance and

LAW OFFICE OF WILLIAM C. PRICE III, P.A.

Prohibiting Storage, Rule Prohibiting Additions to the home or lot without prior Park Management Approval and Rule Prohibiting Fences and Gates on any Lot or Home) and pursuant to that notice were provided seven (7) days to correct all of the violations by removing the lattice fence and removing lawn mowers, tools, boxes, traffic cones and other items stored outside from the exterior of the premises of lot 182. A copy of the notice and certified proof of mailing are attached to this Complaint as Plaintiff's Exhibit B.

12. On November 4, 2022, Exhibit B was also posted on 900 9th Avenue East, Lot #182, Palmetto, Manatee County, FL 34221 pursuant to Fla. Stat. §723.061.

13. After providing more than the seven days of notice set forth pursuant to Fla. Stat. §723.061 to cure the violations described in paragraphs 9 and 10, Defendants JOSE LUIS VASQUEZ and MARY ROSELLA HUFFMAN VASQUEZ did not cure the violations of Rules 7, 15 and 22 of the Rules and Regulations of COLONIAL MANOR MHC HOLDINGS, LLC.

14. As a result, on December 14, 2022, Plaintiff posted on the premises and sent by Certified Mail Return Receipt Requested, a notice of termination of the Defendants JOSE LUIS VASQUEZ'S VASQUEZ and MARY ROSELLA HUFFMAN VASQUEZ right to reside on the premises, granting them 30 days to vacate the premises of 900 9th Avenue East, Palmetto, FL 34221, lot 182. A copy of the Notice of Termination of Tenancy and proof of certified mail are attached hereto as Plaintiff's Exhibit C.

15. Plaintiff also posted Exhibit C on the premises of Defendants on December 14, 2022.

16. As of the date of the filing of this Complaint, the Defendant, JOSE LUIS VASQUEZ and MARY ROSELLA HUFFMAN VASQUEZ have not complied with the Rules and Regulations of COLONIAL MANOR Rules 7, 15 and 22 by refusing to remove the fence or outside storage and failing to maintain the exterior premises of lot 182.

LAW OFFICE OF WILLIAM C. PRICE, III, P.A.

17. Plaintiff has not accepted rent since the date that the Defendants failed to correct violations of park rules and regulations as stated herein.

18. Pursuant to Section 723.068 of Florida Statutes, Plaintiff is entitled to an award of costs and attorney fees arising out of the action.

WHEREFORE, Plaintiff requests this Honorable Court enter a judgment for possession of the premises together with costs and reasonable attorney's fees against Defendants, JOSE LUIS VASQUEZ, MARY ROSELLA HUFFMAN VASQUEZ and ANY UNKNOWN PARTY IN POSSESSION, and such other and further relief as the Court may deem proper.

**COUNT II**  
**ACTION FOR DAMAGES (RENTAL)**

19. This is an action seeking less than \$30,000.00 excluding costs, interest and attorney fees.

20. Plaintiff re-alleges the facts contained within paragraphs 1 through 18 as though fully set forth herein.

21. Plaintiff, as landlord, leased to Defendants, JOSE LUIS VASQUEZ and MARY ROSELLA HUFFMAN VASQUEZ, Lot 182, 900 9th Avenue East, Palmetto, FL 34221 of the above stated mobile home park at a monthly rental fee of \$723.50.

22. Plaintiff has suffered damages for unpaid rent, court costs and a reasonable attorney fee arising out of the prosecution of this action.

23. Plaintiff has retained the undersigned counsel to represent it in this action and has agreed to pay it a reasonable fee for its services.

LAW OFFICE OF WILLIAM C. PRICE, III, P.A.

WHEREFORE, Plaintiff requests this Honorable Court enter a judgment against Defendant, JOSE LUIS VASQUEZ and MARY ROSELLA HUFFMAN VASQUEZ for damages, costs, and attorney fees.

COUNT III

ACTION TO ENFORCE LANDLORD'S LIEN

24. This is an action seeking to enforce a landlord's lien pursuant to Sections 713.691 and 713.77 of Florida Statutes.

25. The Plaintiff re-alleges the facts contained within paragraphs 1 through 23 as though fully set forth herein.

26. Defendants, JOSE LUIS VASQUEZ and MARY ROSELLA HUFFMAN VASQUEZ, are the registered owners of a 1980 NOBILITY HOMES, INC double wide mobile home, VIN N22079A, Title No. 0019020268 and VIN N22079B, Title No. 0019020269, located on Lot #182 of the property leased by the Plaintiff to the Defendant.

27. Upon the Plaintiff being determined to be entitled to judgment for possession of the premises in this Complaint, Plaintiff is entitled to a landlord's lien against said mobile home to enforce its judgment against Defendant for any unpaid rent, utility bills, late fees, and damage to the real property caused by the Defendant, plus court costs and a reasonable attorney's fee for the pursuit of this eviction and for related relief.

28. The Plaintiff claims entitlement to enforce its lien against said mobile home by judicial sale pursuant to Florida Statute §45.031.

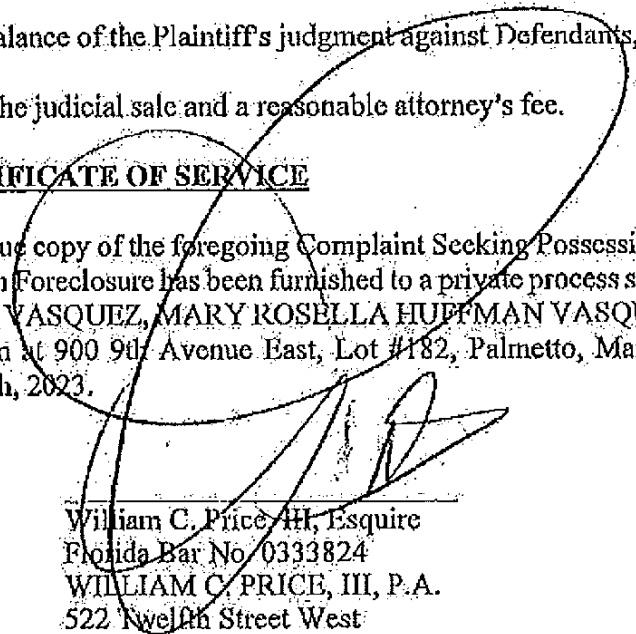
29. The Plaintiff is entitled to credit toward the purchase of said mobile home in the sum representing all of Plaintiff's judgment against the Defendants, JOSE LUIS VASQUEZ and

MARY ROSELLA HUFFMAN VASQUEZ, all costs of this proceeding and reasonable attorney's fees.

WHEREFORE, the Plaintiff prays this Honorable Court enter an order, ordering a judicial sale of the mobile home identified herein pursuant to Florida Statute §45.031 to occur between thirty (30) and forty-five (45) days after the rendition of judgment for possession and damages in the above-styled cause, and to grant the Plaintiff a credit toward the purchase of the mobile home representing the unpaid balance of the Plaintiff's judgment against Defendants, plus any costs expended by it for obtaining the judicial sale and a reasonable attorney's fee.

**CERTIFICATE OF SERVICE**

I HEREBY CERTIFY that a true copy of the foregoing Complaint Seeking Possession of Residential Premises, Damages and Lien Foreclosure has been furnished to a private process server for service upon the Defendant(s) JOSE VASQUEZ, MARY ROSELLA HUFFMAN VASQUEZ, and Any Unknown Party in Possession at 900 9th Avenue East, Lot #182, Palmetto, Manatee County, FL 34221 on 29 day of March, 2023.

  
William C. Price, III, Esquire  
Florida Bar No. 0333824  
WILLIAM C. PRICE, III, P.A.  
522 Twelfth Street West  
Bradenton, Florida 34205  
Telephone: (941) 747-8001  
Facsimile: (941) 747-3730  
[Pleadings@wcpricelaw.com](mailto:Pleadings@wcpricelaw.com)  
Attorney for the Plaintiff

LAW OFFICE OF WILLIAM C. PRICE, III, P.A.

# Colonial Mobile Manor

900 9th Avenue East (US 301 North), Palmetto, Florida 34221

Telephone: (841) 722-3191

## RULES & REGULATIONS - EFFECTIVE JANUARY 1, 2011

1. **LOT RENTAL** - Rent is due on the first day of each month. Rent received late and by the fifth of the month, or the following business day if the fifth falls on a Sunday, is subject to additional rent of \$35.00. Rent received late and after the tenth of the month is subject to additional rent of \$75.00. The charge for a returned check is \$40.00. Bounced rent checks will incur a late fee in addition to the bounced check fee of \$40.00 if not repaid within twenty-four (24) hours of notification.

Water, sewer and storm water charges are billed directly to the Home Owner. If payment of the water/sewer bill is not received by the date due, there will be a \$35.00 late charge per month.

2. **QUIET ENJOYMENT** - Any act of any resident or permitted guest of any resident which disturbs or endangers the life, health, safety, property, or peaceful enjoyment of the park or its residents is not permitted, and is grounds for eviction.

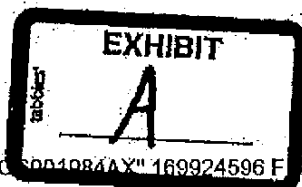
3. **OCCUPANCY** - Colonial Mobile Manor is an age 55+ park. All persons must be approved to reside in the Park. All residents and overnight invitees must be registered prior to occupancy. At least one resident must be 55 years of age or older. An approved person may have a member of his immediate family (spouse, parent, adult sibling, or child) approved to reside with him as long as the family member is over the age of 40 and is approved for residency. The family member, under the age of 55, may reside only for such period as the person over the age of 55 actually lives in his home. No one under the age of 40 may reside in any unit of the park under any circumstances. Maximum approved residency in a home is limited to three (3) persons.

4. **INVITEES** - Approved Residents must register (30) days per calendar year. After 30 days, an invitee must pay \$75.00 per invitee per month or part thereof and may not stay beyond an additional thirty (30) days. Children (under 18) must be accompanied by a resident when using park facilities, and may not use the pool table. Residents are responsible for the actions of their invitees. Nothing contained in these Rules and Regulations shall be construed as to authorize children to reside in the park.

5. **COMMERCIAL ACTIVITIES** - No commercial activities, including babysitting or child day care, are permitted at the park or on or in any lot or home.

6. **PETS** - Pets, except for small birds in a cage or fish in a tank, are not permitted in

Page 1 of 4



"20230004984AX" 169924596 Filed at Manatee County Clerk 03/29/2023 02:57:29 PM EDT

"2024CC002691AX" 220282359 Filed at Manatee County Clerk 04/03/2025 04:50:24 PM EDT



the park at any time. Violation of this Rule may result in legal action including eviction. Feeding wild or stray animals is prohibited.

7. **LOT & HOME MAINTENANCE** - The Home Owner shall maintain the lot and the exterior of the home in a neat and clean manner and shall have the home pressure cleaned or painted as required by Management. Storage is not permitted on the patio, in the driveway, or on the lot. Home Owners shall maintain the trees, plants, shrubs, and lawn (mow, trim, edge, fertilize, etc.) on their lots. Summer lawn maintenance requires mowing once a week. Watering the lawn is allowed before 9:00 A.M. or after 5:00 P.M., or in accordance with any government watering regulation. Excessive watering causing water run-off into the street is prohibited. Planting or removal of trees and plants on the lot requires the Park Owner's approval. Should it become necessary, because of neglect, for the management to maintain the lawn, the cost to the Home Owner will be \$50.00 per mowing, trimming, and edging.

8. **CLUBHOUSE** - Smoking is not permitted in the clubhouse. The clubhouse is for the use of park residents and their guests who are accompanied by the resident. The clubhouse may not be used for commercial activities. All activities must be approved by the Park Management. Hours are from 8:00 A.M. - 9:00 P.M. daily and may be temporarily extended or shortened upon request and with approval by Park Management. All personal property in the clubhouse is owned by the park. Any alterations or changes to the personal property or to the clubhouse must be approved by the Park Owner. Residents using the clubhouse or personal property therein shall clean up immediately after their activities.

9. **SALE OR RENTAL OF HOME** - Notice of a pending home sale or rental must be provided to Management not less than fifteen (15) days prior to the date of sale or the effective date of commencement of the rental. Prospective residents must complete an application for residency and be approved by the Park Manager prior to residency. It is also the obligation of the Home Owner to provide prospective buyers/renters with a complete copy of these Rules and Regulations. All prospective residents take residency subject to any existing liens of the Park Owner including unpaid utility expenses.

Only one "For Sale" sign is permitted, not to exceed 12" x 18" to be displayed from a window. "For Rent" signs are not permitted. Renters shall have the same residency limitations as the Home Owner. If the Renter is seasonal (i.e. less than one year), a maximum of two (2) seasonal Renters may occupy the home.

10. **MAXIMUM HOME OWNERSHIP** - No person may own more than two (2) mobile homes in the park at the same time.

11. **VEHICLES & BOATS** - For your safety, the park's speed limit is 15 MPH. Overnight parking and storing boats or vehicles are not permitted on the street. Parking on the grass is not allowed. Vehicles illegally parked or without current license tags may be towed by

Management at vehicle owner's expense. No repair or maintenance work is permitted on cars, SUVs, boats, RV's, trucks, etc. in the park. Parking on another's lot is prohibited unless written permission is given by the Home Owner to Management.

12. **WATER** - During periods of extended vacation, the Home Owner must turn off the water supply valve to the home. Should it become necessary, because of willful or negligent acts of the Resident, for the Management to repair the water meter or the piping from the main water line to the meter module or from the main water line to the home, the costs of repair shall be charged to the Home Owner. Unpaid charges shall constitute a lien against the Home Owner's property on the lot. Homes with electric hot water heaters must have a check valve installed.

13. **SEWER** - The Home Owner must keep the sewer line flushed with water and is responsible for maintaining the sewer line from the home to the main sewer line. Any repairs, replacements, or cleaning of the sewer line between the home and the main sewer line are the liability of the Home Owner. This includes any foreign matter, roots, etc. that clog the sewer line. Unpaid charges shall constitute a lien against the Home Owner's property on the lot.

14. **GARBAGE** - Garbage collection is twice per week. The Home Owner must use a wrapper or a liner in the trash can and should dispose of grease with the garbage. Throwing or placing grass cuttings, refuse, trash, or anything into the canals is prohibited. The City of Palmetto no longer charges Home Owners for extra refuse. If a Home Owner has an appliance to be picked-up, the Home Owner must notify the City of Palmetto. Grass cuttings, tree clippings, etc. not properly cut and tied as determined by the City of Palmetto shall not be picked up by the City of Palmetto.

15. **ADDITIONS** - A written plan must be submitted in advance and approved by the Park Owner before work begins for any additions, alterations, or construction to a home or to the lot.

16. **LAUNDRY** - A laundromat is available. Laundry may be hung to dry only in the drying area behind the clubhouse. No clotheslines and no airing or drying of clothes on the lot or outside the home are permitted.

17. **ELECTRICITY** - The Home Owner is responsible for his electric bill, the electric line from the home to the FPL meter, the breaker, and any connection outside the home, including the utility shed and receptacles.

18. **AIR CONDITIONING** - Central air conditioners may be installed at the rear or at the side of the home.

19. **UTILITY SHEDS** - Utility sheds must be constructed to the roof of the carport.

PAGE 4 OF 4

20. **SATELLITE TV** - One satellite television dish, not larger than 20" in diameter, without extensions, may be installed directly on the home; on the side of the home, or installed on the rear of the home. Outdoor antennas and aeriats are not permitted.

21. **POLICY** - The Park Owner is not liable for accident or personal injury to any person or property through the use of any park facility. Home Owners and their invitees use park facilities at their own risk.

22. **MISCELLANEOUS** - Fences and gates are not permitted on any lot or around any home. No soliciting or peddling is allowed. Mobile home residents and their invitees may not use the swimming pool in Palm Bay Mobile Home Park.

23. **MAILING ADDRESS** - Mail should be addressed as follows: Your Name, 900 - 9<sup>th</sup> Avenue East, Lot #\_\_\_\_, Palmetto, Florida, 34221. Always use your lot number, and remember to renew your forwarding address each year.

24. **PARK RULE CHANGES** - Park Rules may be changed or new ones added with 90 days written notice to each homeowner, and the board of directors of the homeowners association, if one has been formed.

25. **NOTICES** - The persons authorized to receive notices are:

As to Management:

The Park Manager  
900 - 9<sup>th</sup> Avenue East  
Palmetto, Florida 34221.

As to Owner:

Colonial Mobile Manor Limited LLLP  
900 - 9<sup>th</sup> Avenue East  
Palmetto, Florida 34221.

COLONIAL MANOR MHC HOLDINGS, LLC

d/b/a COLONIAL MANOR

900 9<sup>th</sup> Avenue East

Palmetto, FL 34221

941-722-3191

November 4, 2022

DATE:

TO:

Jose Luis Vasquez  
Mary Rosella Huffman Vasquez,  
and Any Unknown Tenant(s)  
900 9<sup>th</sup> Avenue East, Lot 182  
Palmetto, Florida 34221

Certified Mail - Return Receipt Requested  
# 7018-0040-0000-2915-6517

Notice of Non-Compliance With Community Rules and Regulations Giving Tenant/Owner  
Seven (7) Days to Correct Non-Compliance

Delivery of the mailed notice shall be deemed given 5 days after the date of postmark.

YOU ARE HEREBY NOTIFIED that pursuant to Florida Statute §723.061(c), you are not in compliance with Colonial Manor Rules 7, 15 and 22.

Rule 7: Lot and Home Maintenance- states in relevant part:

*The Home owner shall maintain the lot and the exterior of the home in a neat and clean manner... Storage is not permitted on the patio, in the driveway, or on the lot.*

Rule 15: Additions- states in relevant part:

*A written plan must be submitted in advance and approved by the Park Owner before work begins for any additions, alterations or construction to a home or to the lot.*

Rule 22: Miscellaneous- states in relevant part:

*Fences and gates are not permitted on any lot or around any home.*

You have installed a fence of lattice type wood. The fence partially obstructs the view of the storage being performed on the lot of Colonial Manor Lot 182. You have received courtesy notices in the past with regard to the structure (fence) and the storage of objects on the lot.

This is your notice that you are in violation of the above rules of Colonial Mobile Manor, effective January 1, 2011, which you accepted when you were approved for residency.

CONTINUED ON PAGE 2

Page 1 of 2

EXHIBIT

B

You are notified that you have twelve (12) days from the date of this notice to correct the non-compliance with these rules by the following corrective action:

- 1) Remove the Lattice Fence and;
- 2) Remove the objects that you have been storing on the lot (lawn mowers, tools, boxes, traffic cones.)

The twelve (12) days includes the five days after the date of postmark of this notice. Pursuant to Florida Statute §723.061, DEMAND IS HEREBY MADE that you remedy the non-compliance with Rules 7, 15, and 22 within seven (7) days of receipt of this Notice, or your lease shall be deemed terminated and you shall vacate the premises upon such termination pursuant to Fla. Stat. §723.061(c)2. Colonial Manor hereby puts you on notice that if this same or similar conduct continues or is repeated within twelve (12) months, your tenancy is subject to termination without you being given an opportunity to cure the non-compliance as to violations of Rules #7, 15 and 22.

PLEASE GOVERN YOURSELVES ACCORDINGLY.

11-4-22  
DATED

Cheryl Peake  
Cheryl Peake  
PARK MANAGER

Additional service by posting a copy at residence

By: William C. Price, III  
Community Representative

11/4/2022  
Date of Posting

Certified Mail by:  
Law Office of William C. Price, III, P.A.  
522 12th Street West  
Bradenton, FL 34205  
(941)-747-8001

**SENDER: COMPLETE THIS SECTION**

- Complete items 1, 2, and 3.
- Print your name and address on the reverse so that we can return the card to you.
- Attach this card to the back of the mailpiece, or on the front if space permits.

1. Article Addressed to:

JOSE LUIS VASQUEZ &  
Mary Rosella Huffman  
Vasquez  
900 9th Ave E Lot  
Palmetto, FL 34221 1B2



9590 9402 7010 1225 0604 91

2. Article Number (transfer from service label)

7018 0040 0000 2915 6517

PS Form 3811, July 2020 PSN 7530-02-000-9053

**COMPLETE THIS SECTION ON DELIVERY**

A. Signature

*[Signature]*

☐ Agent  
☒ Addressee

B. Received by (Printed Name)

Jose Luis Vasquez

C. Date of Delivery

11/7

D. Is delivery address different from item 1?

If YES, enter delivery address below:

☐ Yes  
☒ No

3. Service Type

- |                                                                        |                                                                     |
|------------------------------------------------------------------------|---------------------------------------------------------------------|
| <input type="checkbox"/> Adult Signature                               | <input type="checkbox"/> Priority Mail Express®                     |
| <input type="checkbox"/> Adult Signature Restricted Delivery           | <input type="checkbox"/> Registered Mail™                           |
| <input checked="" type="checkbox"/> Certified Mail®                    | <input type="checkbox"/> Registered Mail Restricted Delivery        |
| <input type="checkbox"/> Certified Mail Restricted Delivery            | <input type="checkbox"/> Signature Confirmation™                    |
| <input type="checkbox"/> Collect on Delivery                           | <input type="checkbox"/> Signature Confirmation Restricted Delivery |
| <input type="checkbox"/> Collect on Delivery Restricted Delivery       |                                                                     |
| <input type="checkbox"/> Insured Mail                                  |                                                                     |
| <input type="checkbox"/> Insured Mail Restricted Delivery (over \$500) |                                                                     |

X Return Receipt

Domestic Return Receipt

**U.S. Postal Service™  
CERTIFIED MAIL® RECEIPT**  
Domestic Mail Only

For delivery information, visit our website at [www.usps.com](http://www.usps.com).

**OFFICIAL USE**

Certified Mail Fee

\$

Extra Services & Fees (checkboxes, add fee as appropriate)

- |                                                              |    |
|--------------------------------------------------------------|----|
| <input type="checkbox"/> Return Receipt (hardcopy)           | \$ |
| <input type="checkbox"/> Return Receipt (electronic)         | \$ |
| <input type="checkbox"/> Certified Mail Restricted Delivery  | \$ |
| <input type="checkbox"/> Adult Signature Required            | \$ |
| <input type="checkbox"/> Adult Signature Restricted Delivery | \$ |

Postage

\$

Total Postage and Fees

\$

Sent to

Jose Luis Vasquez, Mary Rosella  
Huffman Vasquez, Any unknown tenants  
900 9th Ave E Lot 1B2 Palmetto  
City, State, ZIP+4

PS Form 3800, April 2015 PSN 7530-02-000-9017

See Reverse for instructions

# William C. Price, III, P.A.

Attorneys and Counselors at Law

Civil & Criminal Litigation  
Personal Injury  
Family Law

Mobile Home/Landlord-Tenant Law

William C. Price, III, Esq.  
wcp3@wcpriatelaw.com  
William C. Price, IV, Esq.  
wcp4@wcpriatelaw.com

DATE: December 14, 2022

TO: JOSE LUIS VASQUEZ, MARY ROSELLA HUFFMAN VASQUEZ AND ANY UNKNOWN TENANTS

ADDRESS: 900 9<sup>th</sup> Avenue East, Palmetto, FL 34221  
Lot 182, Colonial Mobile Manor

CMRR: #7019-1640-0001-6609-6752 AND BY POSTING

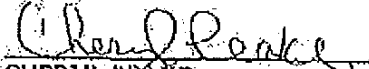
RE: Notice of Violation of Colonial Manor Rules and Regulations

## CERTIFIED MAIL - RETURN RECEIPT REQUESTED

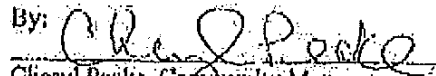
### NOTICE OF TERMINATION OF LEASE

YOU ARE NOTIFIED THAT, PURSUANT TO FLORIDA STATUTE §723.061 YOUR RIGHT TO RESIDE IN THE PREMISES IDENTIFIED AS 900 9<sup>th</sup> AVENUE EAST, LOT #182, MANATEE COUNTY, PALMETTO, FLORIDA 34221 IS TERMINATED EFFECTIVE JANUARY 14, 2023. THIS NOTICE IS A RESULT OF CONTINUED FAILURE TO COMPLY WITH RULES 7, 15 & 22 OF THE RULES AND REGULATIONS OF COLONIAL MANOR BY NOT REMOVING THE FENCE OR OUTSIDE STORAGE. IF YOU REMAIN IN THE PREMISES BEYOND THIS DATE, YOU WILL BE CONSIDERED TENANTS AT SUFFERANCE AND AN ACTION FOR POSSESSION OF THE PREMISES WILL BE PURSUED.

COLONIAL MANOR MHC HOLDINGS, LLC  
900 9<sup>th</sup> AVENUE EAST  
PALMETTO, FLORIDA 34221  
LANDLORD

  
CHERYL PEAKE

I HEREBY CERTIFY that a copy of the foregoing was sent by CERTIFIED MAIL and POSTED upon the named tenant posted at the above referenced address, this 14<sup>th</sup> day of December 2022.

By:   
Cheryl Peake, Community Manager  
COLONIAL MANOR MHC HOLDINGS, LLC

cc: Colonial Manor MHC Holdings, LLC

Serving the Citizens of Manatee and Sarasota Counties Since 1981  
522 Twelfth Street West, Bradenton, Florida 34205  
Telephone (941) 747-8001 • Fax (941) 747-3730

EXHIBIT

C

"2022CC001084AX" 1/16/2023 Filed at Manatee County Clerk 03/29/2023 02:57:29 PM EDT

"2024CC002691AX" 2/20/2025 Filed at Manatee County Clerk 04/03/2025 04:50:24 PM EDT

| SENDER: COMPLETE THIS SECTION                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                | COMPLETE THIS SECTION ON DELIVERY                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |
|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <p>■ Complete Items 1, 2, and 3.</p> <p>■ Print your name and address on the reverse so that we can return the card to you.</p> <p>■ Attach this card to the back of the mailpiece, or on the front if space permits.</p> <p>1. Article Addressed to:</p> <p>Jose Luis Vasquez, Mary<br/>Rosella Hoffman, Mary<br/>any unknown-errants<br/>700 9th Ave E, Lot 182<br/>Palm Beach, FL 33422</p> <p>9590 9402 6822 1074 3438 20</p> <p>2. Article Number (Transfer from service label)</p> <p>7014 1640 0001 6609 6752</p> <p>PS Form 3811, July 2020 PSN 7530-02-000-9053</p> | <p>A. Signature</p> <p>X Mary Hoffman</p> <p><input type="checkbox"/> Agent <input type="checkbox"/> Addressee</p> <p>B. Received by (Printed Name)</p> <p>C. Date of Delivery</p> <p>D. Is delivery address different from Item 1? <input type="checkbox"/> Yes<br/>If YES, enter delivery address below: <input type="checkbox"/> No</p> <p>3. Service Type</p> <p><input type="checkbox"/> Adult Signature <input type="checkbox"/> Priority Mail Express®<br/> <input type="checkbox"/> Adult Signature Restricted Delivery <input type="checkbox"/> Registered Mail™<br/> <input type="checkbox"/> Certified Mail® <input type="checkbox"/> Registered Mail Restricted Delivery<br/> <input type="checkbox"/> Certified Mail Restricted Delivery <input type="checkbox"/> Signature Confirmation™<br/> <input type="checkbox"/> Collect on Delivery <input type="checkbox"/> Signature Confirmation Restricted Delivery<br/> <input type="checkbox"/> Collect on Delivery Restricted Delivery <input type="checkbox"/> Signature Confirmation Restricted Delivery<br/> <input type="checkbox"/> Insured Mail <input type="checkbox"/> Insured Mail Restricted Delivery (over \$500)</p> <p>XRR</p> <p>Domestic Return Receipt</p> |

7014 1640 0001 6609 6752

**U.S. Postal Service**  
**CERTIFIED MAIL® RECEIPT**  
 Domestic Mail Only

For delivery information, visit our website at [www.usps.com](http://www.usps.com)

**OFFICIAL USE**

Certified Mail Fee  
\$

Extra Services & Fees (check box, add fee as appropriate)

☐ Return Receipt (hardcopy) \$  
☐ Return Receipt (electronic) \$  
☐ Certified Mail Restricted Delivery \$  
☐ Adult Signature Required \$  
☐ Adult Signature Restricted Delivery \$

Postage  
\$

Total Postage and Fees  
\$

Sent To: Jose Luis Vasquez, Mary Rosella  
 Street and Apt. No., or PO Box No.  
 700 9th Ave E, Lot 182  
 City, State, ZIP+4®  
 Palm Beach, FL 33422

PS Form 3800, April 2015 PSN 7530-02-000-9053. See Reverse for Instructions